

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2021-6123 and 2021-7466

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO AS A LICENSED PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF DULCE GARCIA, LICENSE NO. LPC 0015186,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (“Board”) and Dulce Garcia (“Respondent”), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order (“Order”).
2. Respondent was a Licensed Professional Counselor (“LPC”) in the State of Colorado on January 16, 2019, having been issued license number LPC 0015186, and is currently so licensed.
3. This Order is a full and final resolution of case numbers 2021-6123 and 2021-7466. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Based on its review of case numbers 2021-6123 and 2021-7466, the Board alleges that Respondent violated section 12-245-224(1)(g), (i) and (r), C.R.S. Respondent denies the Board’s allegations.
5. Although Respondent denies the Board’s allegations, Respondent agrees that if the allegations were proven by the Board at hearing, Respondent would be found to have violated section 12-245-224(1)(g), (i) and (r), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(g)(I) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and

national associations of practitioners in the field of the person's professional discipline;

(i) Has maintained relationships with clients that are likely to impair the person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

(r) Has engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in section 18-3-401, with a client during the period of time in which a therapeutic relationship exists or for up to two years after the period in which a therapeutic relationship exists.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

RELINQUISHMENT

7. Respondent hereby permanently relinquishes her Licensed Professional Counselor license and the right to practice as a Licensed Professional Counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of section 12-20-404(3), C.R.S.

8. Following relinquishment of her license, Respondent shall not perform any act requiring a license to practice.

9. Respondent agrees not to register as a psychotherapist in the State of Colorado or perform any act constituting psychotherapy as defined under section 12-245-202(14), C.R.S.

TERMS AND CONDITIONS

10. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

11. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

12. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

13. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

14. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

15. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

16. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

17. This Order shall be admissible as evidence at any hearing held before the Board.

18. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT



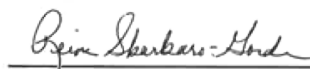
DULCE GARCIA
LICENSE No. LPC 0015186

APPROVED AS TO FORM
FOR RESPONDENT


Robert A Lees
5290 DTC Pkwy
Ste 150
Greenwood Village, CO 80111-2764

AGREED TO AND ORDERED BY:

BOARD OF PROFESSIONAL COUNSELOR
EXAMINERS



REINA SBARBARO-GORDON
Program Director

Effective this 5 day of May,
2022.